REPORTABLE (17)

PETROZIM LINE (PRIVATE) LIMITED
v
SAMUEL HOVA

SUPREME COURT OF ZIMBABWE
GUVAVA JA, MAKONI JA & CHIWESHE JA
HARARE: 16 JANUARY 2026 & 23 FEBRUARY 2026

T. Mpofu, for the appellant

The respondent in person

MAKONI JA:

[1] This is an appeal against the whole judgment of the Labour Court of Zimbabwe (the court *a quo*), sitting at Harare, handed down on 19 April 2024, as judgment number LC/H/180/24. In that judgment, the court *a quo* granted an application for review in favour of the respondent and issued the following order:

> "1. The application for review be and is hereby granted;
> 2. The disciplinary proceedings (and their outcome) by respondents against applicant are set aside;
> 3. The matter is remitted to the first respondent for a re-hearing by a new Disciplinary Committee within the next 60 (sixty) days;
> 4. Pending the conclusion of the hearing applicant shall be deemed as suspended without pay and benefits; and
> 5. If first respondent fails to comply with para 3, it shall
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> (a) Reinstate applicant without loss of salary and benefits; or
> (b) Pay applicant damages *in lieu* of reinstatement in a sum either agreed by the parties or assessed by this Court."

FACTUAL BACKGROUND

[2] The appellant is a company duly incorporated in accordance with the laws of Zimbabwe. The respondent is a former employee of the appellant who, at the material time, also served as the president of a Trade Union, Zimbabwe Petroleum & Allied Workers Union

(ZIPAWU). On 22 April 2022, the respondent was suspended without pay and benefits on allegations of misconduct under the registered code of conduct for that industry.

[3] Consequently, the respondent was arraigned before the appellant's disciplinary committee on 28 April 2022, facing charges of misconduct in terms of Part II, s 7(e) (iv) of the National Employment Council for the Zimbabwe Energy Industry Code of Conduct and Grievance Handling Procedures. The disciplinary hearing, initially scheduled for 10 May 2022, was deferred on several occasions, which the appellant attributed to the respondent's defaults and late attendances.

[4] The hearing eventually commenced on 2 June 2022 and proceeded until 14 June 2022. At the close of proceedings on that date, the appellant's case had not yet been concluded, with one witness still under examination. Upon adjournment, the respondent's legal practitioner sought a postponement to enable the respondent to prepare his defence case and to secure witnesses. The disciplinary committee was further advised that the respondent was required to attend before a Labour Officer on 15 June 2022, and a formal application for postponement was accordingly made.

[5] Notwithstanding the application for postponement, the disciplinary committee reconvened on 15 June 2022 and proceeded to receive the remainder of the appellant's evidence in the absence of the respondent. On 16 June 2022, the committee directed the parties to file their closing submissions by 12:00 noon on 17 June 2022. The respondent did not file submissions within the prescribed time, and the committee proceeded to determine the matter without the benefit of the respondent's evidence and submissions. The respondent was subsequently found guilty of the charges and dismissed from employment.

[6] Aggrieved by his dismissal, the respondent applied for the review of the disciplinary proceedings before the court *a quo* in terms of s 89(1)(d) of the Labour Act [*Chapter 28:01*] (the Act). The gravamen of his complaint was that the disciplinary committee proceeded with the hearing notwithstanding a pending application for postponement, despite having been notified of his obligation to attend a meeting at the Ministry of Labour and the need to prepare his defence. He contended that this conduct violated s 20 (2)(c)(v) of the National Employment Council for the Zimbabwe Energy Industry Code of Conduct, which guarantees the right to be heard, and that the ensuing dismissal was procedurally unfair and denied the parties equal treatment.

[7] *Per contra*, the appellant opposed the review application, contending that the grant or refusal of a postponement lay within the discretion of the disciplinary committee. It was argued that the respondent had not been candid in his explanation for seeking the postponement, as the only reason advanced was a desire to prepare his defence. The appellant further maintained that the respondent was not entitled to a postponement, contending that disciplinary proceedings are informal in nature and not governed by strict rules of procedure, and that no prejudice arose from proceeding in his absence. It was accordingly argued that the respondent had willfully absented himself from the continuation of the hearing and failed to place any evidence in mitigation before the committee.

[8] The court *a quo* concluded that the disciplinary proceedings were procedurally unfair, having infringed the respondent's right to be heard. It held that the matter before the disciplinary tribunal was sufficiently complex to warrant the granting of a postponement, and that the failure to do so constituted a material irregularity. On that basis, the court

a quo granted the application for review and set aside the decision of the disciplinary committee, issuing the order outlined in the introductory portion of this judgment.

[9] Aggrieved by the decision of the court *a quo*, the appellant sought and was granted leave to appeal in terms of s 92F of the Act, as read with r 43 of the Labour Court Rules, 2017 (the Rules). The appellant thereafter filed the present appeal with this Court on 7 August 2024.

[10] While the appeal was pending, the appellant, notwithstanding the noting of the appeal, proceeded to comply with the order of the court *a quo* by instituting a fresh disciplinary hearing in compliance with the court *a quo's* order the subject of appeal before this Court. That committee rendered a decision which has since become the subject of an internal appeal in terms of the applicable Code of Conduct, as well as an application for review before the court *a quo* under case number LC/H/865/24. In those proceedings, the court *a quo* again determined the matter in favour of the respondent and ordered a remittal of the case for the disciplinary proceedings to be conducted afresh.

[11] It is against this backdrop that the respondent contends that the appeal before this Court has been overtaken by events and is therefore moot.

SUBMISSIONS BEFORE THIS COURT

[12] At the hearing of the appeal the respondent raised a preliminary point contending that the present appeal has become moot. He submitted that the appellant had already complied with the order forming the subject of the appeal and as such the appeal has become moot in that it is now an appeal against an order that the parties have since complied with. He contended that a determination of the current appeal will not alter the

rights and obligations between the parties as determined in the fresh disciplinary hearing the parties. On that basis, the respondent prayed that the matter be struck off the roll.

[13] *Per contra*, Mr *Mpofu*, counsel for the appellant opposed the preliminary point, submitting that the contention of mootness was without merit. It was argued that the reinstatement of the appeal by KUDYA JA necessarily signified that the matter remained live and properly before this Court. Counsel further submitted that a matter becomes moot only where a court's determination would serve no practical purpose or where no effective relief can be granted, and that such circumstances did not obtain *in casu*. He contended that the matter between the parties had not been resolved and remains live despite the institution of the fresh proceedings. He accordingly prayed that the preliminary point be dismissed.

[14] In reply, the respondent maintained that the appeal had been overtaken by events and remained moot. It is worth noting that, as the respondent advanced his submissions, it became apparent that he was confusing two doctrines, namely, mootness and peremption. His submissions vacillated between the requirements of the two doctrines. To show his confusion upon the Court's inquiry regarding his understanding of the doctrine of mootness, the respondent sought the Court's indulgence to acquaint himself with the meaning and scope of that doctrine using Artificial Intelligence. Given that the respondent was uncertain whether he was relying on mootness or peremption, it becomes necessary to examine both doctrines in order to properly resolve the preliminary point as raised.

ISSUES FOR DETERMINATION

[15] Having regard to the submissions advanced before this Court, two issues arise for determination:

1. Whether the present appeal has become moot.
2. Whether the appellant perempted the appeal.

ANALYSIS

[16] The respondent raised a preliminary objection to the appeal, premised on the assertion that it has been overtaken by events and is therefore moot. The foundation of that objection is that the appellant has already complied with the order of the court *a quo* directing a remittal of the matter to the disciplinary authority for a hearing *de novo*. He contended that, as a consequence of such compliance, no live controversy remains between the parties and that any determination by this Court would be devoid of practical legal effect, particularly in light of the fact that further proceedings have since ensued pursuant to the impugned order.

[17] The appellant disputed this characterisation. Mr *Mpofu*, advanced a layered response anchored on the proposition that mootness arises only where a court is called upon to decide an issue that has become purely academic and incapable of yielding effective relief. The decisive consideration, it was submitted, is whether the judgment sought would have practical utility. In that regard, counsel argued that a decision of this Court overturning the order of remittal would have immediate and operative consequences, in that all proceedings flowing from that order would be deprived of their legal foundation and would necessarily fall away. In other words, they would be rendered null and void for all intents and purposes.

[18] He also submitted that the appellant had only complied with the court a *quo's* order because there was a real risk of being in contempt of court. It was its firm position that the compliance had been done in protest and not because appellant had abandoned its right to appeal.

Whether or not the present appeal is moot.

[19] This Court has, in a long line of decisions, pronounced itself on the doctrine of mootness, and the governing principles are now well settled. It is therefore apposite to restate the applicable position of the law, as articulated in *Ndewere* v *President of Zimbabwe NO & Ors* SC 57/22 at paras 37 - 44, where this Court examined the doctrine in detail in the following terms:

> "[37] A matter is moot if the dispute becomes academic by reason of changed circumstances, thus making the jurisdiction of the court unsustainable.
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> [38] The issue was comprehensively dealt with by the Constitutional Court in *Thokozani Khupe & Anor* v *Parliament of Zimbabwe & Ors CCZ 20/19* at p 7, where it held as follows:
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> > 'A court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy. The position of the law is that if the dispute becomes academic by reason of changed circumstances the Court's jurisdiction ceases and the case becomes moot… The question of mootness is an important issue that the Court must take into account when faced with a dispute between parties. It is incumbent upon the Court to determine whether an application before it still presents a live dispute as between the parties. The question of mootness of a dispute has featured repeatedly in this and other jurisdictions. The position of the law is that a court hearing a matter will not readily accept an invitation to adjudicate on issues which are of 'such a nature that the decision sought will have no practical effect or result.' (Underlining for emphasis)
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> [39] The above principle was followed in *MDC & Ors* v *Mashavira & Ors* SC 56/20 at para 95 where it was stated: -
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> > '…a court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy between the parties. … If the dispute becomes academic by reason of changed circumstances, the case becomes moot and the jurisdiction of the court is no longer sustainable.'
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> [40] In a comparable instance, in *ZIMSEC* v *Mukomeka & Anor* SC 10/20 at para 18, PATEL JA (as he then was) set out a two-tiered approach to ascertain whether an appeal is moot. The learned Judge, cited the Supreme Court of Canada, in *Borowski* v *Canada (Attorney General)* [1989] 1 SCR 342, where it was held that: -

> 'It is first necessary to determine whether the requisite tangible and concrete dispute has disappeared rendering the issues academic. If so, it is then necessary to decide if the court should exercise its discretion to hear the case.'

[41] In respect of the second stage of the inquiry on mootness, PATEL JA held at para 21 that:-

> 'The next step in the analysis is to decide whether or not the court should exercise its discretion to hear the case. In that respect, courts are guided by the rationale and policy considerations underlying the doctrine of mootness -*Borowski*'s case, *supra*.
>
> The overriding consideration is whether or not it is in the interests of justice to hear a moot case. The factors to be taken into account in that regard were lucidly enunciated by the Constitutional Court of South Africa in *Independent Electoral Commission* v *Langeberg Municipality* 2001 (3) SA 925 (CC) at para 11:-
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> > '… discretion must be exercised according to what the interests of justice require. A prerequisite for the exercise of the discretion is that any order which this Court may make will have some practical effect either on the parties or on others. Other factors that may be relevant will include the nature and extent of the practical effect that any possible order might have, the importance of the issue, its complexity, and the fullness or otherwise of the argument advanced.'" (Emphasis added)

See also *Munyoro & Ors* v *Minerals Identity (Pvt) Ltd & Ors* SC 3/25 at paras 23-29.

[20] Against that backdrop, the inquiry before this Court is not whether the appellant complied with the order of the court *a quo*, that fact being common cause, but whether such compliance extinguished the controversy as between the parties so as to render this appeal purely academic. Stated differently, the question is whether a determination by this Court on the correctness or otherwise of the remittal order would still have a practical effect on the parties' dispute.

[21] In our view, that question must be answered in the affirmative. The point of departure is that the appellant's compliance with the order of the court *a quo*, though undoubtedly

relevant, is not in itself dispositive of the question of mootness. What remains central is whether the issue sought to be determined has lost all practical significance. That inquiry must be undertaken with due regard to the nature of the dispute that was before the court *a quo* and the relief sought on appeal.

[22] It is common cause that the appellant continues to challenge the procedural correctness of the court *a quo*'s decision to remit the matter to the disciplinary authority on a finding that the proceedings conducted had been grossly irregular. That issue has never been determined to finality. It remains the foundation upon which all subsequent proceedings turn. Should this Court conclude that the remittal was wrongly ordered, it is beyond dispute that the legal foundation upon which the ensuing proceedings rest would be fundamentally undermined. In such circumstances, it cannot be said that the appeal is merely academic or devoid of practical utility.

2. Weather the appellant perempted the appeal.

[23] As previously mentioned in this judgment, the respondent's contention that the appeal has been overtaken by events is premised entirely on the appellant's compliance with the impugned order. Whether such compliance has the effect contended for cannot be answered without a careful examination of the doctrine of peremption and its application to the facts of the present case.

[24] The law on acquiescence and peremption is well settled. In *Dabner* v *South African Railways and Harbours* 1920 AD 583 at 594, the South African Appellate Division expressed the rule as follows:

> "The rule with regard to peremption is well settled, and has been enunciated on several occasions by this Court. If the conduct of an unsuccessful litigant is such as to point indubitably and necessarily to the conclusion that he does not intend to attack the judgment, then he is held to have acquiesced in it. <u>But the conduct relied upon must be unequivocal and must be inconsistent with any intention to appeal.</u>

> And the *onus* of establishing that position is upon the party alleging it." (The emphasis is mine)

[25] The principle was reaffirmed in *Tswelopele Non-Profit Organisation* v *City of Tshwane* MM 2007 (6) SA 511 (SCA), where CAMERON JA stated at para 10:

> "Peremption of the right to challenge a judicial decision occurs when the losing litigant acquiesces in an adverse judgment. But before this can happen, the Court must be satisfied that the loser has acquiesced unequivocally in the judgment. The losing party's conduct must 'point indubitably and necessarily to the conclusion that he does not intend to attack the judgment'." (My emphasis)

[26] Further qualification was rendered In *Venmop 275 (Pty) Ltd & Anor* v *Cleverlad Projects (Pty) Ltd & Anor* 2016 (1) SA 78 (GJ) at para [25], where PETER AJ distilled the principle thus:

> "An unsuccessful litigant who has acquiesced in a judgment cannot appeal against it. The *onus* of proof rests on the person alleging acquiescence and in doubtful cases it must be held not to be proven… Rather it involves a consideration of the objective conduct of such person and the conclusion to be drawn therefrom."

[27] Earlier authority had already drawn a clear distinction between compliance and acquiescence. In *Hlatshwayo* v *Mare & Deas* 1912 AD 242, DE VILLIERS CJ observed at p 248 that:

> "Where a Court has ordered a judgment to be carried into execution, the mere payment of the amount or part thereof by a party condemned to pay it is no doubt consistent with the intention not to appeal against it, but it is also consistent with the view that he paid to avoid execution…"

[28] In our jurisdiction, closely following the South African authorities on the doctrine of peremption, the Constitutional Court in *Zimbabwe Consolidated Diamond Co (Pvt) Ltd* v *Adelcraft Investments (Pvt) Ltd* CC 02/24 at para 36, held that:

> "The same principles were relied upon in *Gentiruco A.G.* v *Firestone SA (Pty) Ltd* 1972 (1) SA 589, at 600, and also in *Cohen* v *Cohen* 1980 ZLR 286. In the latter case, assent or peremption was likened to estoppel by words or conduct. It was further explained that peremption is not to be lightly inferred. The court must be clearly satisfied that the appellant in question has abandoned its right of appeal." (Underlining for emphasis)

See also *Shah* v *Nherera* CC/09/25 at para 113.

[29] Measured against these principles, we are of the considered view that the respondent's objection cannot be sustained. The respondent relies on nothing beyond the bare fact of compliance. Yet, the appellant was, contemporaneously, pursuing leave to appeal and seeking access to this Court. That conduct is wholly inconsistent with an intention to abandon appellate rights, and in the absence of even a hint of doubt regarding the abandonment of those rights, it would be inappropriate for this court to determine that there has been acquiescence and that the appellant has forfeited the appeal.

[30] The appellant's explanation that compliance was undertaken to avoid being in contempt of court is both plausible and consonant with established legal principle. As the authorities consistently recognise, obedience to a court order pending appeal is not, without more, indicative of acquiescence in the judgment, but rather reflects respect for the rule of law. There is a long and consistent line of authorities underscoring the principle that court orders must be obeyed unless and until they are set aside, varied by a court of competent jurisdiction or suspended by the noting of an appeal. The obligation is unqualified: every person against whom, or in respect of whom, a court order is made is bound to comply with it until it is lawfully discharged. It is not open to litigants to arrogate to themselves the discretion to determine whether a court order should be obeyed. To hold otherwise would place litigants in an untenable position, where they have to choose between compliance with court orders and the preservation of their constitutional right of appeal.

[31] Crucially, the respondent identified no additional conduct that points unequivocally to an intention on the part of the appellant to accept the judgment of the court as final. In the

absence of such evidence, this Court can only arrive at the conclusion that the stringent threshold for peremption has not been met.

DISPOSITION

[32] From the foregoing analysis, it is evident that the dispute at the heart of this appeal has not been rendered academic. The correctness of the court *a quo*'s order of remittal remains a live and a contested issue. A determination by this Court would have tangible and practical consequences for the parties, including the legal validity of the proceedings that followed the impugned order. The appeal is therefore not moot, and this Court is properly seized with the matter.

[33] Should this Court find that the decision of the court *a quo* was erroneous, its judgment would operate in substitution thereof, it being trite that a judgment of this Court takes effect as if it had been rendered by the lower court. Equally, even were this Court to affirm the decision of the court *a quo*, the appellant would nonetheless obtain a final and authoritative pronouncement on the propriety of that decision, a right it has never waived or abandoned.

[34] The existence of a realistic possibility that this Court's judgment could materially affect the legal position of the parties suffices to defeat the contention that the appeal is merely academic. The dispute, viewed both substantively and procedurally, remains live.

[35] Regarding peremption, this Court is satisfied that the respondent failed to establish that the appellant's conduct of complying with the order of the court *a quo,* points unequivocally to accepting the judgment as final thereby abandoning its appeal.

[36] Accordingly, this Court is properly seized with the appeal.

In the result, it is ordered as follows: -

1. The preliminary objection raised by the respondent be and is hereby dismissed.

2. The Registrar be and is hereby directed to set down the appeal for hearing before the same bench.

GUVAVA JA : I agree

CHIWESHE JA : I agree

Maguchu & Muchada Business Attorneys, appellant's legal practitioners.